restraint and refrained from invoking the 'nuclear' option – declaring Salwa Judum unconstitutional, directing that it be disbanded and ending the role of SPOs in counter-insurgency operations.

That would change in July 2011, when the court pronounced judgement in this case. A panel of Justice B. Sudarshan Reddy (who was slated to retire from office that week) and Justice S.S. Nijjar declared the establishment of Salwa Judum unconstitutional and ordered that it be disbanded immediately. It also directed an immediate end to the deployment of the SPOs in counter-insurgency operations. The state and central governments were censured for their conduct from the time of the filing of the PIL in 2005. The state government was criticized for making misleading statements about its progress in complying with the court's directions. The court expressed its 'deepest dismay' with the central government for abdicating its constitutional responsibility by arguing that law and order was a 'state subject' and that it had no role in determining how SPOs would be recruited, trained or deployed.[22]

The Supreme Court catalogued multiple violations of the constitutional rights of both the SPOs and the residents of Chhattisgarh with whom they came into contact. The fundamental right to equality was violated by subjecting SPOs to the same risks as paramilitary personnel, who were better educated and better trained to perform counter-insurgency operations. Since SPOs cost much less to the public exchequer than paramilitary personnel, in the court's eyes there was an economic calculus behind this and 'issues of finance' had 'overridden other considerations'.[23] The central and state governments' assertion that SPOs were a useful 'force multiplier' gained no sympathy.[24] Constitutional values simply did not permit unethical means, no matter how effective or economical, to be justified by the ends.

The fundamental right to life was violated because uneducated and poorly paid Adivasi youngsters could not be expected to understand the dangers they faced in the performance of their functions and exercise sound judgement in confronting those dangers. The court lamented that SPOs had become 'cannon fodder' in the forests of Chhattisgarh.[25] The state could not